CITATION GARDENS CO-OP #9
PROPERTY MANAGEMENT & MAINTENANCE POLICY
REVISED BY THE BOARD OF DIRECTORS
DECEMBER 16, 2020

PROPERTY MANAGEMENT AND MAINTENANCE POLICY

1. Property Management Company

To aid in the operation of Citation Gardens Cooperative Corporation No. 9 (hereafter the Co-op), the Board of Directors has contracted the services of a Property Management Company, Tucson Realty and Trust Company. It provides, among other functions, assistance in the hiring of maintenance worker(s) and/or independent contractors to do project work and repairs for the Co-op. They fulfill work orders on work done for the Co-op, but they also can give Members recommendations for workmen to do Member maintenance and remodeling.

2. Routine Maintenance

To request maintenance, Members should contact the Property Management Maintenance Supervisor who co-ordinates all work by email (response time will be faster) or telephone:

Andrew Vizcarra, Maintenance Supervisor
TRT Management Services
(520) 327-0009
avizcarra@trtmanagement.com

The company offices are located at:

TRT Management Services
Whitney Cunningham, Property Manager
2525 E Broadway Blvd, #111
TRT Management Services
Tucson, AZ 85716
(520) 327-0009
wcunningham@trtmanagement.com

Please remember that the Property Manager and Maintenance Supervisor are employed by the Board of Directors and are neither responsible for nor authorized to make policy decisions for the Co-op, for instance, on interpretation of this policy. Questions should be directed to a member of the Board of Directors before asking for maintenance or remodeling to be done.

The Maintenance Supervisor will schedule when the work can be done at a time when there is someone to let the workman in; this may not be the same day. Maintenance personnel will not perform work on any unit unless a Member eighteen (18) years of age or older is present or permission to enter the unit with no one home is granted. Under no circumstances will maintenance personnel enter a unit with only a minor present.

3. Emergency Maintenance

The regular Management Company telephone number should be used to report serious maintenance emergencies such as burst water pipes or backed up sewers. If the emergency occurs within regular office hours (8:00 AM to 5:00 PM Monday to Friday), the Member should tell the Management Company receptionist the nature of the emergency and ask to be connected to the Maintenance Supervisor or Property Manager.

If the maintenance emergency must be reported out-of-hours, the regular Management Company number should be called. Their answering service will forward the call to the appropriate person to take action. This service should not be overused; if abuse is persistent, a fine may be incurred.

4. Maintenance Responsibilities

The sections below explain who is responsible for maintenance and upkeep. The list of items is extensive but not all-inclusive. If a Member has any question about whose responsibility it is to maintain or pay for a repair, please contact a member of the Co-op Board of Directors.

Changes to maintenance policy may be made at any time by a majority vote of the Board of Directors. Members will be provided written updates to any changes after they are approved.

A. Members' Responsibilities

(1) Members pay for the repair and replacement of:

- All windows/glass
- All doors including sliding glass doors (rollers/tracks/locks) and security doors
- All door locks including deadbolts. As agreed in the Occupancy Agreement, copies of keys must be provided the to the Co-op if locks are re-keyed.
- Townhouse gates, including latches and locks
- All screening
- Kitchen appliances (stoves, refrigerators, dishwashers)
- Repair and replacement of garbage disposals
- Personal washer and dryers
- Interior light fixtures (ceiling and wall)
- Ceiling fans
- Exhaust fans
- Air conditioners and heat pumps
- Water heater repair or replacement with a standard 29/30 gallon model or an on-demand water heater.
- Faucet repair and replacement as needed
- Bathtub replacement
- Evaporative Cooler – Each Spring, Members planning on using the swamp cooler, at

any time during the year, will sign up for cooler "start-up" and a $100 fee will be charged to their account. This fee will also cover the cost of evaporative cooler "shut-down" in the Fall.

- Member is responsible for ½ the cost of evaporative cooler repairs and replacement parts (pump, spiders, bearings, float, motor, belts, pads, retardant, cabinet)
- Cooler vents
- ½ the cost of wall heater repairs and replacement costs
- Painting inside patio walls
- Interior decorating (painting, carpeting, drapes)
- Awnings
- Inside patio repairs and landscaping (townhouse units) including trimming of trees, plants, and shrubs)
- Smoke alarms and carbon monoxide detectors
- Utilities (gas, electric, cable, phone)
- Mandatory homeowners insurance coverage on unit
- Members are responsible for payment of service calls that prove to be unnecessary or are due to Member negligence.

Any damage to the premises of a Member's unit or to other units caused by Member negligence, maintenance, alterations or remodeling, whether performed by the Member or his contractor, will be the responsibility of the member (and his/her insurance company). This includes any change or installation of plumbing, electrical, kitchen or laundry equipment that could affect existing plumbing, wiring or lighting. When the unit is sold this responsibility passes to the new owner.

Members should make sure their required homeowner's insurance covers such damage. (Note that renters insurance usually does not.)

(2) Members are responsible for preventing damage whenever possible. Not doing so will be considered negligence. The Co-op was built in 1962 and almost all the original plumbing and electrical systems are still in place. This must be kept in mind when using, caring for, modifying, or repairing these systems. At a minimum, Members are responsible for:

- Reporting water leaks immediately. Over a period of time major damage can result from small leaks.
- Avoiding use of cleaning tablets in toilet tanks. Almost all toilet cleaner tablets contain chlorine. This causes damage to the toilet seals and requires removal and reinstallation of the toilet or installing a new one.
- Avoiding the use of corrosive chemicals like Drano to clear drains; this causes damage to metal pipes.
- Flushing only human waste and toilet paper down toilets; no sanitary products, wipes of any kind (whether they are labeled flushable or not), or other paper products may be flushed.
- Hiring only licensed contractors to work on the electrical system, plumbing or gas installations when doing their own repairs.

- Turning off water at the shutoff to the unit where possible when leaving for extended periods of time. This will prevent flood damage both to his/her unit and to others' units in the Member's absence.

B. Co-op #9 Responsibilities

(1) The Co-op is responsible for maintaining the following items:

- All electrical inside the walls of a unit, but not upgrades.
- All plumbing inside walls of unit
- Repair of drywall on ceiling and walls damaged by interior plumbing leaks
- Toilets (repairing existing toilets, and purchasing and installing new ones when required, if damage was not caused by the Member's negligence)
- Tub caulking/tub stems
- Shutoff valves.
- Water and sewer repair
- Clearing drains and unblocking toilets
- Repair of ceilings due to roof damage
- Pest control inside units (signup sheet on Members Bulletin Board)
- Evaporative Cooler - Co-op will pay for ½ the cost of repair and replacement parts (pump, spiders, bearings, float, motor, belts, pads, retardant, cabinet)
- Scheduled seasonal evaporative cooler start up and shut down for Members who have signed up for cooler use and have agreed to pay a $100 yearly fee.
- Wall Heaters – ½ the cost of repair and replacement costs (thermocouples, controls, flex gas line, valve unit)
- Seasonal wall heater inspection and start up if required.

If it is determined by the Board or Management Company that any of the above repairs or replacements are a result of member abuse or negligence, the member will be held financially responsible.

(2) In addition, the Co-op provides the following services/maintenance in common areas:

- Exterior painting
- Laundry facilities
- Out buildings maintenance
- Common area utilities
- Internet
- Trash and garbage removal
- Pool maintenance
- Exterior lights
- Drying yard
- Pest control (power spraying)
- Parking lot
- Roofs

CITATION GARDENS #9
REMODELING AND LIVING AREA ADDITIONS POLICY

REMODELING AND LIVING AREA ADDITIONS POLICY

The Board of Directors of Citation Gardens Co-Operative No. 9 has adopted the following procedure for obtaining approval to remodel or to build living area additions to respective terrace or townhouse units.

This is deemed necessary to comply with city, county, state, and federal government standards of safety and construction. The County Assessor's office may inspect, each year, every co-op at Citation Gardens to ascertain added living space and reflect its findings in the annual assessment.

Included within this policy are *any* changes or additions to existing plumbing, electrical, and gas systems. No structural changes are permitted to the existing structures, interior or exterior. Normal painting, decorating,carpet and drapery installation is not included.

The County Assessor's office considers the following as living area additions:

a. Permanent room extensions on townhouse patios.

b. Solid wall construction to terrace patios/balconies.

c. Sliding glass doors to first floor terrace patios.

Procedure:

1. Any Member of the co-op wishing to remodel, reconstruct, demolish, add to, or subtract from the premises constituting the project, must submit plans to the Co-op No. 9 Board of Directors. The Member will furnish a copy of suitable diagrams or sketches of the proposed changes or addition.

   Note: Co-op No. 9 does not allow the use of wood in exterior remodeling or construction. Exterior decking, with treated wood only, may be approved by the Board.

2. If the Board of Directors rejects the proposed plans but suggests appropriate revisions, these changes must be made and resubmitted.

3. Upon initial approval of the construction by the Board, the Member will apply for and secure a City Building Permit (if required) and submit a copy to the Board of Directors.

4. After final approval by the Board of Directors, construction may commence. A yearly charge may be made against the unit (if warranted) when the next tax assessment is established. This yearly charge (if imposed) will be a permanent charge thereafter. The Member named on the Membership Certificate will sign an agreement regarding the additional charge.

5. Our buildings are old and the Board receives many complaints about floors squeaking. In an effort to help solve this problem, the Board of Directors agrees that Co-op No. 9 will bear the expense of labor to screw or nail down the floors on the second floor. Co-op No. 9 will not be responsible for lifting or removing the carpet and pad in order to accomplish this. If/when the member has the floor exposed and wants this service provided, a maintenance request needs to be placed (in advance) to the maintenance supervisor for scheduling.

   In keeping with noise abatement and energy savings goals, the use of tile, linoleum or other hard surface material as floor covering for second floor mall area units is restricted to the entry way, kitchen, and/or bathroom areas only. All other floor covering for bedrooms, hall, living room, or dining room areas must be of carpeting with good quality underpadding.

The Board of Directors wishes to stress that the results of this policy must be safe and quality construction, with no additional financial burden to another unit.

If a Member makes any alterations or additions without first obtaining written approval, the Member will be considered in default.

CITATION GARDENS #9
LATE CARRYING CHARGE FEES
AND
BAD CHECK FEES

LATE CARRYING CHARGE FEES AND BAD CHECK FEES

The late charge applied to all Carrying Charge payments received by the co-op after the fifteenth (15th) of the month in which they are due will be twenty-five dollars ($25.00). Any Member whose Carrying Charges are not paid by the end of the calendar month in which they are due will be assessed an additional twenty-five dollars ($25.00) for a total late charge of fifty dollars ($50.00). Payment may be mailed or hand-delivered to the Managing Agent's office.

Any Member who has written a check to the co-op, which is returned by the bank for any reason, will be charged an additional twenty-five dollars ($25.00). The Member must make good the total amount owing of the original check amount and the twenty-five dollar penalty charge by certified check, money order, or cashier's check.

We would remind all Members that good payment for Carrying Charges must be received by the fifteenth (15th) of the month for which they are due in order to avoid late charges. To that extent:

1. If a check for Carrying Charges is returned by the bank for any reason after the fifteenth (15th) of the month for which they are due, the late charge of twenty-five dollars ($25.00) will be added to the amounts owing for the returned check and the Carrying Charge amount.

2. If a check for the Carrying Charges is returned by the bank for any reason after the end of the calendar month for which they are due, the late charge of fifty dollars ($50.00) will be added to the amounts owing for the returned check and the Carrying Charge amount.

3. **Late charges and/or returned check charges or other sums that are due and payable from the prior month will be collected <u>FIRST</u> from any payment received (regardless of any notations on a check or money order). Any outstanding balance due will constitute Carrying Charges, or part thereof, and be subject to late charges in accordance with the Late Charge policy.**

4. Carrying Charges, or part thereof, or any other charges more than thirty (30) days in arrears will be deemed a default under the terms of the Occupancy Agreement. On the 16th day of the succeeding month the co-op will retain legal services to enforce collection of indebtedness to the co-op. Legal fees incurred for these legal services will be added to the total amount of indebtedness to be collected to cure the default under the terms of the Occupancy Agreement.

5. If the default in payments is not cured as set forth by the Legal Notice, a forcible detainer action will be filed. If the lawsuit becomes necessary, the co-op will also seek a judgement therein for all amounts past due and owing, Court costs, and attorney's fees.

CITATION GARDENS #9
TERRACE AND BALCONY POLICY
FOR "M" BUILDINGS

TERRACE AND BALCONY POLICY FOR 'M' BUILDINGS

The Board of Directors of Citation Gardens Co-op No. 9 has adopted the following general rules for the maintenance and appearance of the terraces and balconies:

1. Balconies and terraces must be kept clean, neat, and uncluttered.

2. Balconies and terraces are not to be used for the storage of items that are better suited for storage within the co-op storage room.

3. If, in the opinion of the Board of Directors, any item stored on a Member's balcony or terrace is inappropriate because of appearance or because it may cause potential maintenance problems, the Board may require the prompt removal of such item.

4. No barbecuing is permitted on either balconies or in the mall area of ground floor terrace units.

5. Permission to install wrought iron or to enclose or alter the patio terrace or balcony must be received from the Board of Directors before beginning any such work.

CITATION GARDENS #9
STORAGE ROOM POLICY

STORAGE ROOM POLICY

The following rules have been adopted by the Board of Directors governing the use of the storage rooms and the limitations upon the items that may be stored.

The co-op shall not be held responsible for loss for any reason of your stored items. For this reason, we suggest serious consideration be given to the nature of your stored items and whether you wish to store them in the co-op storage room.

Co-op No. 9 currently has one storage room available for use by the Members. This room is located in "M" Building directly above the maintenance room.

The storage room will be kept locked at all times. Members of the Board of Directors will have access to the room within reasonable hours. Access will be only by accompanying a Director to the room. Keys will not be given to the Members to enter the rooms alone.

General Rules

1. All items stored must be placed in a rigid container or cardboard box which will permit the stacking of items. Luggage shall be considered to be its own container.

2. All containers must be identified as to owner and unit number on the exterior.

Restrictions

Because of increasing insurance costs, restrictions imposed by local fire ordinances and the desire to provide storage equitably to our Members, the following rules will be in effect.

1. No storage of liquids of any type is permitted.

2. No empty boxes will be permitted to be stored. Knocked-down boxes are OK.

3. No unit fixtures. Unit fixtures are defined as those items, which came with your unit, e.g. mirrors, lamps, doors, sinks, rugs, stoves, screen doors, etc. The Board of Directors may require any fixture removed from the Member's unit to be replaced prior to the transfer of the stock.

4. No furniture. Because household furnishings generally take a large amount of space, storage of these items is not permitted. Household furniture includes, but is not limited to, items such as sofas, chairs, tables, box springs, mattresses, dressers and table lamps.

CITATION GARDENS #9
PARKING LOT RULES
AND
REGULATIONS

Section 9.

Parking Lot Rules and Regulations

A. Introduction

1. This document, approved by Citation Gardens Cooperative Corporation No. 9 Board of Directors on April 15, 2019 replaces Section 9 of the Members Handbook published 2007. Members should replace the old section with this version in their copy of the Members Handbook.

2. These rules and regulations clarify the responsibilities of both the Board and individual Members in the management and use of the Parking Lot. The definition of "Member," found in Section III.2 of the By-laws of Co-op #9, is "persons who have been approved for Membership by the Board of Directors...and who have executed an Occupancy Agreement furnished by Co-op #9.

3. The Articles of Incorporation and the By-laws of Co-op #9 state it is part of the Board's responsibility to maintain its common property, such as parking lots, in good repair and in a condition that preserves the health and safety of its Members. The By-laws also give the Board the specific power to manage parking spaces.

4. The Board will appoint a member of the Board to act as Parking Manager to do the following: allocate parking spaces, manage rental of parking spaces, inspect the parking lot for damage or infractions of parking regulations, keep all records pertaining to management of the parking lot, and enforce parking regulations.

5. Any Member who disagrees with a decision of the Board's Parking Manager may request a hearing by the entire Board to appeal. A written request for the hearing needs to be submitted to the Management Company. The decision of the Board is final.

B. Allocation of Parking Spaces to Members

1. The Board and its Parking Manager will allocate spaces taking into consideration the needs of Members. The Parking Manager will make every effort to change allocation of parking spaces among Members as little as possible, but may re-allocate any parking space at any time. The current allocation of spaces is posted on the Co-op #9 Bulletin Board.

2. Members do not own parking spaces. All allocations must be made with the approval of the Parking Manager. Members may not trade, swap, rent, sell or share parking spaces. If any Member wants a different space, he/she must give a written request to the Parking Manager which includes the reason(s)

why he/she should be allocated a different space. Members must park only in their allocated spaces.

3. Members who own a vehicle qualify to be allocated one parking space per dwelling unit.. Members not initially assigned a space will be assigned one by the Parking Manager when they acquire a vehicle. At that time, the Member must follow the procedure described in Section G below: "How to Register for an Allocated Parking Space," to obtain a parking space.

4. Members or residents may also rent additional spaces from Co-op #9 if any are available (see Section H).

5. Only vehicles that meet the following criteria can be parked in the Parking Lot:

   a. The vehicle is a motorized passenger vehicle (a car, pickup truck, small van, or motorcycle). Recreational vehicles or trailers of any kind will not be allocated a parking space.

   b. The Member or resident can prove ownership of the vehicle by providing a current registration document in his/her name.

   c. The maximum length of the vehicle does not exceed the length of the marked parking space.

   d. The vehicle's license plate shows current registration. Vehicle registration can be in any state, but must be current.

   e. The vehicle is in running order so that it can be easily moved or towed at any time in case of fire or emergency.

C. Rules Regulating the Use of the Parking Lot

1. The references to "Parking Lot" in these rules includes both the Co-op #9 main paved and covered area (the Members Parking Lot), and the gravel parking area located to the south of the main area (the Visitors Parking Lot).

2. The Parking Lot is not to be used as a playground. It is intended to be used solely for parking vehicles. Therefore, adults and children of any age are prohibited from playing in the parking lot for safety reasons.

3. Excessive or loud noises or other disturbances will not be tolerated. Members and their guests must come and leave quietly during late or early morning hours to avoid disturbing the residents of Co-op #9.

4. No more than one vehicle is permitted to be parked in any one space

5. Vehicles must be parked in the center of the parking space between the white lines.

6. Motorcycles and mopeds are motorized vehicles and must be parked in allocated parking spaces. They may not be parked inside the dwelling unit or in the yard of a dwelling unit. Bicycles and electric bicycles, however, may be parked in the bicycle racks or inside a dwelling unit or yard.

7. No vehicle entering the Parking Lot can restrict in any manner the flow of normal traffic into and out of the Parking Lot, block the fire lanes or prevent the unrestricted use of adjacent parking spaces.

8. The law prohibits parking in the fire lane and anyone in violation will be towed.

9. No repairs may be done on vehicles in the Parking Lot. No vehicles are allowed to be placed on blocks or jacks at any time. Oil or other fluid changes are not permitted within the Parking Lot. However, fluids may be added.

10. Members will be liable for any damages to the Parking Lot caused by themselves or their visitors, including spilled fluids or leaks.

11. In accordance with the Co-op's policy of water conservation, no cars may be washed using the Co-op's water.

12. No vehicles are permitted to be driven or parked on any area of the common grounds of the Co-op outside the Parking Lot.

13. Owners of vehicles are responsible for maintaining their vehicles so they are operational while they are parked in the Parking Lot. All parked vehicles must be towable in case of fire or an emergency that necessitates their immediate removal from the Parking Lot.

14. All vehicles must be moved at the direction of the Board of Directors or its agent in the event that the Parking Lot requires maintenance or repair.

15. Members of Co-op #9 are asked to be on the watch for any actions by individuals which may require the assistance of the Tucson Police or Fire Department and should notify the proper authority as quickly as possible.

16. Co-op #9 is not responsible for any damages that are the result of theft from or vandalism to vehicles parked in the Parking Lot.D.

D. Visitor Parking

1. The term "visitor" includes guests, relatives, employees, and contractors of a Member who wish to park in the Parking Lot.

2. Members are asked to direct their visitors to park in the Visitors Parking Lot (the gravel parking area on the south side of the Members' Parking Lot), in the spaces numbered 42 to 48. The purpose of this parking area is for temporary parking only. Parking in this area does not require a Visitor Parking Pass.

3. A Member may also arrange a temporary Visitor Parking Pass for his/her visitors to park in the Members Parking Lot for stays of two weeks or less under the following conditions:

   a. Temporary visitor parking within the Members Parking Lot must be arranged with the Parking Manager ahead of time to ensure the visitor's vehicle won't be towed. Unidentified visitors who park illegally will be towed. A written request for temporary visitor parking should be submitted to the Management Company.

   b. The Parking Manager will allocate an unused space if one is available.

   c. The Parking Manager will provide a Visitor Parking Pass which must be visible through the windshield while the visitor's car is parked in the Members Parking Lot (see Appendix B).

4. It is the responsibility of each Member to advise all his/her visitors of the Parking Lot Rules and Regulations and to assure they do not violate these rules. The Member will be held responsible for all damages to the Parking Lot, and costs and fines imposed for his/her visitor's infractions of these rules.

E. Enforcement of Parking Lot Rules

1. Parking Lot Rules and Regulations will be enforced by the Board of Directors and their agents and representatives and the Management Company.

2. The Parking Lot Manager will inspect the Parking Lot on a regular, random basis, without notice, and if infractions are noted he/she will take the appropriate action (see Penalties for Parking Lot Violations below). Any Member disputing the decision or action of the Parking Lot Manager may make a written request to the Management Company for a hearing by the entire Board.

3. Any Member of Co-op #9 who notices a violation of the Parking Lot Rules and Regulations may submit a written report to the Management Company.

F. Procedures and Penalties for Parking Lot Rules Violations

1. Towing after 48 hours notice.

This penalty applies to vehicles not authorized to park in the Parking Lot or that are parked in a space not allocated to them.

This penalty applies whether the infraction is by a Member, a Member's Visitor, a resident, or someone not associated with the Co-op. Members should ensure their visitors park in Visitors Parking or obtain a Visitor's Parking Pass to prevent their vehicles being towed.

Procedure for Towing:

a. A colored violation notice will be affixed to the windshield of the vehicle giving the owner 48 hours' notice to move the vehicle before it is towed.

b. In addition, an optional verbal warning may also be given to the owner of the vehicle by the Parking Lot Manager, but only if the person responsible is known and can be reached.

c. If the vehicle has not been re-parked or removed after the 48-hour notice period has elapsed, the vehicle will be towed.

2. Warning Letter.

This penalty applies to all other infractions of the Parking Lot Rules and Regulations.

Procedure for Warning Letter:

a. The Parking Manager will provide to the Management Company all information on the Member, the vehicle, the infraction, and the recommended deadline by which the infraction must be rectified. This usually will be 30 days but may be shorter.

b. The Management Company will send a notice letter to the Member listing the vehicle information, a description of the infraction, the required action to correct the infraction, and the deadline for compliance. A copy of the letter will be sent to the Parking Manager by the Management Company for his/her records.

c. The Parking Manager may give an optional verbal warning as well, but the notice letter is mandatory.

d. If the infraction has not been corrected by the deadline stated in the Warning Letter, the vehicle will no longer be authorized to park in the Co-op #9 Members or Visitor's Parking Lots and will be towed (Section F.1 above).

e. The Board of Directors also has the right to impose a fine on the violator.

G. How to Obtain an Allocated Parking Space

Members who want to park a vehicle in the Members Parking Lot of Co-op # 9 must first register that vehicle with the Parking Manager and be allocated a parking space. Until a space is assigned, a new Member must park in the Visitors Parking Lot until he/she receives a parking space allocation.

The space assigned may not be the same as the one assigned to the Member previously occupying the new Member's dwelling unit. Therefore, any old documentation of allocated parking space numbers that may appear on the share transfer documents are invalid and will be ignored.

The procedure for obtaining a space in the Members Parking Lot is:

1. Get a Vehicle Parking Space Allocation Form (see Appendix A) from the Management Company and fill it out (except for the Assigned Space which is to be left blank).

2. Sign and submit the form at the same time as the Occupancy Agreement is signed.

3. The Parking Manager will allocate a parking space and complete the form.

4. The Parking Manager will file the form in his/her records and will also update the map of the Members Parking Lot on the Co-op #9 Bulletin Board.

5. The Member must submit an updated form to the Management Company if information changes in order to avoid towing or other penalties due to apparent non-compliance with the Parking Lot Rules.

H. Renting a Parking Space

From time to time, a few unallocated spaces may be posted for rent by the Parking Manager. (See the map on the Co-op Board of Directors Bulletin board.) These spaces will only be rented to Members or residents of Co-op #9.

The same rights and responsibilities that apply to allocated spaces apply to rented spaces. Renters will be asked to fill out and sign a Parking Space Allocation form. All Parking Lot Rules and Regulations apply to the rented spaces.

The following restrictions apply to rented spaces:

1. Rentals are month-to-month with a 30-day notice period. When spaces must be reallocated by the Parking Manager, a renter may be given either 30 days' notice to vacate the space permanently or 24 hours' notice to move to a designated alternative space in the Parking Lot.

2. The current rental fee has been established by the Board of Directors and is posted on the Board of Directors Bulletin Board. It must be paid monthly to Co-op #9 through the Management Company.

3. Non-payment of parking space rental fees will incur the same penalties as for unpaid carrying charges. Non-payment will also result in a Warning Letter and subjects the delinquent Member to towing of his/her vehicle.

APPENDIX A: Vehicle Parking Space Allocation Form

Parking Space Allocation

Name : _____ Unit No _____ Assigned Space: _____

Vehicle Make and Model_____Year: _____Color:_____

License Plate No._____ State _____ Disabled (yes/no)

I have read and understood the current Parking Lot Rules and Regulations. I agree to abide by them and any changes to them the Board of Directors may institute in the future.

Signature of Member/*Resident* _____ Date:_____

APPENDIX B: Visitor Parking Pass

Co-op No.9 VISITOR

Space No. _____

CITATION GARDENS #9
SWIMMING POOL RULES
AND
REGULATIONS

SWIMMING POOL RULES AND REGULATIONS

Citation Gardens Co-op No. 9 maintains and provides a swimming pool for the use and pleasure of the members. The swimming pool is located in the common area between,"L" and "M" buildings. The swimming pool is approximately forty (40) feet in length and twenty (20) feet wide. The depth of the pool ranges from a shallow three (3) feet on the east end of the pool to a maximum depth of eight (8) feet on the west end. No diving board is provided. **No lifeguard is present.**

Maintenance and cleaning of the pool is provided by the co-op and is checked periodically by the Department of Health of the City of Tucson. All chemicals used for the proper maintenance and cleaning of the pool are stored in a locked pool house structure located on the east end of the pool decking.

For the enjoyment of the pool or for informal gatherings, Citation Gardens Co-op No. 9 provides pool umbrella tables and a number of chairs.

The entire pool area includes the pool and surrounding cement decking. This pool area is completely enclosed with a five-foot high fence with gates located on the north and south sides of the pool fence. These gates are kept closed by a self-closing, self-locking mechanism. A key is required to unlock the gate both to gain admittance and/or leave the pool area. Both gates have been keyed alike for convenience. Members of Co-op No. 9 will receive one key per unit issued for the pool area gates. This key must be transferred when the member transfers their share of stock in the corporation.

For safety and health reasons, the Board of Directors asks that the following rules and regulations be followed:

1. The pool will be open for regular use daily except when being cleaned or closed for repairs. No swimming is allowed after 10:00 p.m. Sunday through Thursday, nor after 11:00 p.m. on Friday and Saturday.
2. Anyone under eighteen (18) years of age must be accompanied and supervised by an adult member of Co-op No. 9. The use of a life jacket is recommended for small children.
3. Persons not able to swim well should use only the shallow end. Notice is hereby given that there is a limited shallow area that drops off abruptly.
4. An adult member of Co-op No. 9 must accompany all guests over eighteen (18) years of age. No more than four (4) guests per unit will be allowed at the pool at any one time. Members must be present with their guests at all times. Guests will be limited if their presence interferes with the use of the pool by other members. Members are at all times responsible for the actions of their guests.
5. No infants are allowed in the pool for sanitary and health reasons. Chemicals may be harmful to infants' skin.

6. No intoxicated person shall use the pool.

7. No running, shoving, dunking, excessive noise or any rough play will be permitted.

8. No diving in the pool area. Do not climb the pool fence.

9. All umbrellas should be lowered when any individual is the last person to leave the pool area, or when they are finished using the umbrella table.

10. No food, glasses, or glass bottles will be allowed within the concrete area around the pool except parties approved by the Board of Directors. Drinks will be allowed if in plastic or aluminum cans or containers. Please dispose of your drink containers in the garbage cans provided, or, remove your drink containers from the pool area when you are finished.

11. Do not throw any debris into the pool. Furniture and equipment used about the pool should be left clean and free of debris. Towels and other swimming equipment must be removed from the pool area upon leaving.

12. Absolutely no cut-offs permitted in the pool. Wearing unhemmed cut-offs can cause threads to clog the pool filtering system and upset the chemical balance of the pool.

13. Absolutely no curlers of bobby pins may be worn in the pool.

14. Absolutely no pets are allowed around the pool area except for assistive animals.

15. All Pima County Health Department rules must be obeyed.

16. Plastic or soft rubber balls and floats will be permitted provided the pool is not crowded. Absolutely no Frisbee playing inside the fenced pool area. No small toys are allowed that are capable of clogging the drain.

17. Since **NO LIFEGUARD** is provided, members are responsible for their own safety and that of their children while using the pool facilities. Never swim alone!

18. Pool fence gates must be kept closed at all times and should be kept locked when no member is present at the pool area.

19. No tanning lotion or oils are to be used while swimming.

20. Any individual using the swimming pool must be wearing a swimming suit.

21. Prior to leaving the pool area, please see that pool furniture is arranged neatly.

22. There is a $10.00 Charge for replacement of a pool gate key.

CITATION GARDENS #9
LAUNDRY ROOM
FACILITIES
AND DRYING YARD

LAUNDRY ROOM FACILITIES AND DRYING YARD

Upon membership in Citation Gardens Co-op No. 9 you should have received from the previous member a laundry room key. This key will permit admittance to the laundry room, which is fitted with a self-closing, self-locking door. If a key to the laundry room is misplaced or lost, a replacement key can be obtained from the cooperative for a charge of one dollar ($1.00) by contacting the Maintenance Supervisor or a member of the Board of Directors.

Citation Gardens Co-op No. 9 maintains for the benefit of its Members a single laundry room located on the ground floor at the east end of the south "M" building. This room has been leased to the Web Company for the sole use of providing laundry facilities. Web Company is responsible for the repair and maintenance of the laundry machines while Co-op No. 9 is responsible for all janitorial and maintenance services pertaining to the cleanliness and repair of the room.

Currently, Co-op No. 9 has made arrangements to provide three (3) washers and three (3) dryers. The cost for the use of a washer is currently set at seventy-five cents ($.75) to one dollar ($1.00). The dryers are gas heated and the cost for forty-five (45) minutes of drying time is fifty cents ($.50).

In addition, an eight-foot formica-covered laundry-folding table is provided along with a hanger rack.

A single outdoor drying yard located on the extreme east end of the south "M" building is also provided for the Members. This drying yard is a fenced area with clotheslines. The drying yard is maintained by the co-op and should be kept closed at all times.

Laundry Room Rules: HOURS OF OPERATION: 6:00 AM – 10:00 PM DAILY

1. Laundry room facilities are for the exclusive use of the Members of Co-op No. 9. All Members bear the responsibility of asking non-members to leave the premises.

2. Citation Gardens Co-op No. 9 shall not be held responsible for the loss of any article from the laundry room.

3. The door to the laundry room must remain closed and locked at all times. At no time should the door be blocked open if there is no Member present inside the laundry room.

4. The fluorescent lights and fan within the laundry room should be turned off whenever the room is no longer in use. Please try to keep the cost of maintaining the laundry room as low as possible.

5. If a machine is found to be not working properly, please leave an "out-of-order" sign on the machine and report it to the Web Corporation as soon as possible. Please do not assume that it has been or will be reported by someone else.

6. Please read and follow the instructions printed on the machines.

7. Do not overload the machines. Clothes will be washed or dried more effectively by careful attention to the load size. Absolutely no washing of large rugs in the machines.

8. Absolutely no use of dye in the machines.

9. Please clean the lint filters before and after each load.

10. Always leave the laundry room clean and neat. Make an effort to dispose of bottles, boxes, and other throwaway items in the container provided. Everyone will appreciate any extra efforts on your part to clean the room or machines.

11. All Members of Co-op No. 9 who are home during the day should make an effort to do their laundry on weekdays thus leaving more time for those who work to do their laundry on weekends or evenings.

12. Please remember that the laundry room is adjacent to other Members' units and as such any excessive noise may be a nuisance to those neighbors. Please try to come and leave as quietly as possible during the evening hours.

13. Make an effort to remove your clothes from the machines as promptly as possible when the wash or dry cycle has been completed. Another Member may remove clothes from the dryer or washer if they have been left unattended.

14. Do not make any effort or attempt to change the positioning of the machines.

15. Do not adjust or alter the temperature setting of the water heaters.

Drying Yard Rules

1. The drying yard shall not be used for any purpose other than the drying of clothes unless the Board of Directors has granted permission.

2. Only Members of Co-op No. 9 may use the drying yard. All Members bear the responsibility of asking non-members to vacate the premises.

3. Citation Gardens Co-op No. 9 will not be held responsible for any loss from the drying yard.

4. No glass containers shall be permitted within the enclosed drying yard area.

5. The gate to the drying yard should remain closed.

6. Members should report any problems associated with the drying yard to the Maintenance Supervisor or a Board Member.

7. Vandalism to the drying yard should be reported to the Maintenance Supervisor or a Board Member.

CITATION GARDENS #9
WINDOW TREATMENT
POLICY

WINDOW TREATMENT POLICY

The Board of Directors has adopted the following policy governing the appearance of the windows in Citation Gardens Co-op No. 9 in an effort to continue to maintain and improve the appearance of our co-op.

Included under this policy are sliding glass doors, which shall be considered a window.

1. Within thirty (30) days of moving into the unit the Member must have installed in the windows of his unit a traditionally recognized decorator form of window covering. These types of coverings include:

   - Draperies or curtains
   - Shutters
   - Blinds (vertical or horizontal)

   In the event the Member has ordered and is awaiting delivery or installation of the window covering, notice must be given the Board of Directors.

2. Curtains, drapes or their linings visible from outside the unit must be harmonious with colors of the building and trim. Members should avoid contrasting or bright or loud colors; rather they should stay with white, off-white, or beige color tones. Members may feel free to incorporate into their decorating schemes any colors they wish when viewed from inside the units.

3. Shutters must be either natural in color or finished in an off-white or natural wood color (brown tone).

4. Throughout the ownership of the unit the Member must maintain or repair the window coverings so that they appear in good condition and properly hung when viewed from outside the unit.

5. Under no condition will any window covering aside from those listed above be permitted. No reflective materials, no foils, paper, blankets or sheets will be permitted.

6. Should the Member wish to install a window film it must meet the approval of the Board of Directors <u>before</u> installation. It should be of the non-metallic, non-reflective type similar to the types used for automobile windows.

7. Under no circumstances will the Member be allowed to remove the screens from any window or door. All screens must be maintained and in place at all times. The Member shall be held financially responsible for any missing screens that are ordered replaced by the Board of Directors.

8. The Member is responsible for all window glass and screening. The co-op shall replace or repair only the framing or hardware on doors, windows, or screens, and only if the damage was not caused by the neglect or abuse of the Member.

9. No Member shall be permitted to install wrought iron over their windows or sliding glass or entry doors without the permission of the Board of Directors.

10. The Board of Directors must first approve installation of an air conditioner in any window of a unit. Guidelines and restrictions for installation will be given to the Member at the time of the Board of Directors' approval.

CITATION GARDENS #9
PET CONTROL POLICY

Pet Control Policy

The purpose of this policy is to establish uniform rules for pet owners to follow in maintaining control over their pet. This policy will not deny any Member having a pet, but will only set necessary regulations as to the type of pet, number, size and the owner's responsibilities toward Co-op No. 9.

Assistive animals are exempt and are defined as animals that are trained to assist individuals who are vision impaired, hearing impaired, or who have other physical, mental or emotional disabilities for which assistive animals are recommended by a licensed health professional.

1. Any pet that a Member wishes to bring into the Co-op must be approved by the Board of Directors and registered with the Board. Any pet that is brought into the Co-op without prior Board of Directors' approval is subject to immediate removal by request of the Board of Directors.

2. Pets not owned by Members of Co-op #9 are not permitted on the property of Citation Gardens Co-op #9. Members of Co-op #9 may not "baby-sit" for non-Members' pets without the prior approval of the Board of Directors.

3. Three (3) animals per unit are permitted, but only two (2) dogs are permitted per unit. For example, a Member could have two cats and one dog, or two dogs and one cat, but not three dogs.

4. All cats and dogs must be spayed or neutered.

5. Any pet causing repeated disturbances will be subject to immediate removal from the Co-op by a majority vote of the Board of Directors.

6. As required by Pima County, all dogs must be kept on a leash at all times when outside the Member's unit or townhouse yard.

7. Members walking or exercising their dogs on any common ground areas of Citation Gardens will be required to pick up and discard their pet's droppings immediately. Violation of this rule may be cause for the pet to be removed from the Co-op and the Member being denied from having another pet.

8. Pet owners who occupy townhouses are required to keep their yards clean and odor free from all pet droppings. Clean up is required on a daily basis. All animal droppings should be disposed of in a plastic bag before putting into the dumpster.

Revised November 9, 2018 and approved by the Board of Directors.

Pet Control Policy

9. Pets will not be allowed inside the pool area except for assistive animals.

10. At no time will a dog, or any other pet, be allowed to be out of control of the owner.

11. Pet owners are requested to keep their dog or cat inside their unit or yard at night.

12. Owners of cats must provide a litter box for their pet(s).

13. Litter box material must be placed in a sealed plastic bag before depositing in the dumpster.

14. Absolutely no feeding of pets, stray animals or wildlife will be permitted outside a Member's unit or townhouse yard.

15. No aquariums exceeding 30 gallons of water are permitted in second floor terrace units or on the second floor in townhouse units.

16. No pets other than dogs, cats or fish are permitted to be kept in any unit. Any other animal requires Board approval.

Revised November 9, 2018 and approved by the Board of Directors.

CITATION GARDENS #9
STOVE AND SLIDING GLASS DOOR
REPLACEMENT POLICY

STOVE REPLACEMENT POLICY

The Board of Directors of Co-op No. 9 has adopted the following policy regarding replacement of the original stoves. Under the following conditions, Co-op No. 9 will pay one-half the cost of the purchase price of a new stove purchased by the member up to a maximum of $200.

1. The stove to be replaced must be the original.

2. Purchased stove must be brand new - not used or secondhand.

3. The Member must present to the Board of Directors the original sales receipt as proof of the purchase price.

4. Purchased stove must be all electric.

5. Purchased stove may be any style, color, or model provided it meets federal safety standards.

6. The Member must agree to leave newly purchased stove with the unit when selling their unit.

7. The Member must pay for all costs associated with the installation of the new stove.

8. Installation of the new stove must be by a qualified individual.

9. The Member must pay for any carpentry work necessary for or during the installation of the new stove.

10. All costs of future maintenance of the new stove will be the sole responsibility of the Member. The Member will also be responsible for all arrangements concerning maintenance.

The co-op makes this offer to its Members with the understanding that the co-op will only participate in this program once per individual unit. Interested Members should contact the Board of Directors.

SLIDING GLASS DOOR REPLACEMENT POLICY

Because replacement parts have become obsolete, the Board of Directors of Co-op #9 has adopted a new policy regarding repair and/or replacement of the original sliding glass doors. Original is defined as any sliding glass door inherent to the construction of the property in 1963 and includes any existing locks. Effective immediately, any repair or replacement is now the responsibility of the Member. Under the following conditions, Co-op #9 will pay one-half the cost of the purchase price of new sliding glass doors, excluding installation, up to a maximum of $200.

1. A detailed request for any alteration to the original sliding glass door must be presented to the Board in writing, prior to installation.

2. The sliding glass doors to be replaced must be the originals to the construction of the building.

3. Purchased sliding glass doors must be brand new - not used or secondhand.

4. The Member must present to the Board of Directors the original sales receipt as proof of the purchase price.

5. Replacement sliding glass doors must conform to the style approved by the Board of Directors and must meet federal safety standards.

6. The Member must agree to leave the newly purchased sliding glass doors with the unit when selling.

7. Installation of the new sliding glass doors must be by a qualified individual.

8. The Member is responsible for all costs associated with the installation of the new sliding glass doors.

9. All costs of future maintenance of the new sliding glass doors will be the sole responsibility of the Member. The Member will also be responsible for all arrangements concerning any maintenance.

10. Any new sliding glass door locks are the sole responsibility of the Member.

The Corporation makes this offer to its Members with the understanding that the Corporation will only participate in this program once per original sliding glass door, per individual unit. Interested Members should contact the Board of Directors.

CITATION GARDENS #9
MALL LANDSCAPING
AND
FLOWER POLICY

MALL LANDSCAPING AND FLOWER POLICY

The mall area between the two 'M' buildings has been landscaped by Co-op No. 9 to provide a desert atmosphere with limited desert shrubs and plants to provide easy maintenance of the area by the co-op.

The mall area is common ground to be used for the good of all Co-op No. 9 Members. However, those Members who desire to enhance their individual entrance, and the area between their common wall and sidewalk, will be permitted controlled placement of potted plants, artificial flowers, and lawn ornaments provided they do not interfere with the co-op desert landscape and maintenance. Only potted plants properly maintained will be permitted. There will be no in-ground plantings without permission of the Board of Directors.

A Mall Landscape Committee, composed of at least three Members from the "M" buildings area, will be selected and approved by the Board of Directors to control potted plants, artificial flowers, and yard ornament policy.

Those Members desiring to utilize this landscape and flower policy will be responsible for their own upkeep, care, and maintenance.

Addendum to the Rules & Regulations

Fine Policy for Violations of the Rules & Regulations

The Board may impose a fine against the Member for any violations of the provisions of the Corporation's Rules & Regulations.

The range of fines is as follows:

1. Parking Lot Violations
   - First Violation - Warning
   - Second Violation (of same rule) - $10.00
   - Subsequent Violations (of same rule) - $25.00
2. Member's Insurance Policy Violation -$35.00 a month until proof of the Member's Policy is submitted to the Management Company.
3. Fine for first violation of any other Rules and Regulations - $ 25.00
4. Fine for second and subsequent violations of any other Rules and Regulations - $ 25.00
5. Fines for ongoing violations of any other Rules and Regulations - $ 25.00/month until remedied.

Any fines imposed by the Corporation that are not paid by the Member will be added to the Carrying Charges for the Unit.

Collection of such fines may be enforced against any Member in the same manner as the collection of the Carrying Charges.

Adopted by the Board of Directors on February 27, 2018